According to the constitutional scholar, Elliot Bulmer, two broad constitutional archetypes can be identified: the procedural and the prescriptive. The difference between these two types of constitutions relate to the nature and purposes of the document itself[7].

A procedural constitution defines the legal and political structures of public institutions and sets out the legal limits of government power to protect democratic processes and fundamental human rights.

In addition to describing how the government functions, a prescriptive constitution assumes (or attempts to impose) a broad consensus on common societal goals that public authorities must strive to achieve.

CONSTITUTIONALISM AND CONSTITUTIONAL GOVERNMENT

1. Meaning

The concepts of constitution and constitutionalism are closely related to each other. But, there are a few differences between them; like:

1. A country may have a constitution but not constitutionalism, as in the case of a dictatorship. Unlimited power jeopardise freedom of the people and absolute power corrupts absolutely. Therefore, a constitution should be permeated with constitutionalism[8].

2. Constitutionalism connotes, in essence, limited government or limitation on government. It is the antithesis of arbitrary powers. Only when the constitution of a country seeks to decentralise power instead of concentrating it at one point and also imposes other restraints thereon, does a country have not only a constitution but constitutionalism[9].

3. The concept of constitutionalism is that of a polity governed by or under a constitution that ordains essentially limited government and rule of law as opposed to arbitrary, despotic, authoritarian or totalitarian rule. Constitutional government should necessarily be democratic government. Arbitrary power in the hands of any individual or institution – even if conferred by a constitutional document – is a negation of the concept of constitutionalism[10].

4. Constitutionalism desires a political order in which the power of the government are limited. It is another name for the concept of a limited, and for this reason, a “civilized” government. The real justification of the constitution finds place in having a “limited government” and of requiring those who govern to conform to laws and rules[11].

2. Definition

The concepts of constitutionalism and constitutional government have been defined in the following way:

Friedrich: “Constitutionalism provides a system of effective restraints upon governmental action. It is a body of rules ensuring fairplay, thus rendering the government responsible”[12].

Roucek: “Constitutionalism means essentially limited government. It is the antithesis of government by the unrestrained will be of rulers. Regardless of the actual form of effectiveness of restraints, it assumes limitations on government as opposed to arbitrary government”[13].